IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
COURT-IV

C.A. (CAA) NO. 97/ND/2025

Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016

IN THE MATTER OF:

ARUNA BUILDWELL PRIVATE LIMITED

...TRANSFEROR COMPANY NO. 1/APPLICANT COMPANY NO. 1

AND

PRIDE RESIDENCY PRIVATE LIMITED

...TRANSFEROR COMPANY NO. 2/APPLICANT COMPANY NO. 2

AND

SANSKAR INFRACON AND REAL ESTATE PRIVATE LIMITED

...TRANSFEREE COMPANY/APPLICANT COMPANY NO. 3

Order Delivered on: 09.03.2026

CORAM:

SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Mr. Naresh Kumar, Advocate

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. The captioned application is a first motion application jointly filed by the applicant companies viz., M/s Aruna Buildwell Private Limited (hereinafter referred to as Transferor Company No. 1/Applicant Company No. 1) and M/s Pride Residency Private Limited (hereinafter referred to as Transferor Company No. 2/Applicant Company No. 2) and M/s Sanskar Infracon and Real Estate Private Limited (hereinafter referred to as Transferee Company/Applicant Company No. 3) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME").
2. Affidavit in support of the above application sworn by Mr. Ravi Arora on behalf of Applicant Company No. 1 and 3, Mr. Arun Kumar Arora on behalf of Applicant Company No. 2, Authorized Signatory/Director, on behalf of Applicant Companies, is filed. It is also represented that the registered office of all the applicant companies is in the NCT of Delhi and hence within the territorial jurisdiction of this Tribunal.
3. As has been stated in the application, the Transferor Company No. 1/Applicant Company No. 1 i.e., M/s Aruna Buildwell Private Limited

was incorporated on 28th March 2007, under the provisions of the Companies Act, 1956 bearing CIN: U45400DL2007PTC161187 having its registered office at D-1, 1st Floor, Shopping Centre-2, Vasant Vihar, New Delhi-110057. The Authorized Share Capital of the Transferor Company No. 1/Applicant Company No. 1 is Rs. 2,00,00,000/- divided into 20,00,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital is Rs. 45,40,210/- divided into 4,54,021 Equity Shares of Rs. 10/- each. The Transferor Company No. 1 is engaged in the business of real estate i.e. sale/purchase of immovable properties and providing ancillary services.

4. The Transferor Company No. 2/Applicant Company No. 2 i.e., M/s Pride Residency Private Limited was incorporated on 30th May 2011, under the provisions of the Companies Act, 1956 bearing CIN: U70109DL2011PTC220036 having its registered office at D-1, 1st Floor, Shopping Centre-2, Vasant Vihar, South West Delhi, New Delhi-110057, The Authorized Share Capital of the Transferor Company No. 2/Applicant Company No. 2 is Rs. 6,87,40,070/- divided into 68,74,007 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Capital of Transferor Company No. 2 is Rs. 4,67,11,620/- divided into 46,71,162 Equity Shares of Rs. 10/- each. The Transferor Company No. 2 is engaged in the business of real estate i.e. sale/purchase of immovable properties and providing ancillary services.

5. The Transferee Company/Applicant Company No. 3 i.e., M/s Sanskar Infracon and Real Estate Private Limited was incorporated on 6th March 2025, under the provisions of the Companies Act, 2013 bearing CIN: U68100DL2025PTC444106 having its registered office at D-1, 1st Floor, Shopping Centre-2, Vasant Vihar, New Delhi-110057. The Authorized Share Capital of the Transferee Company/Applicant Company No. 3 is Rs. 1,00,000/- divided into 10,000 Equity shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Capital of Transferee Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each. The Transferee Company is a newly incorporated company with object of real estate i.e. sale/purchase of immovable properties and providing ancillary services.
6. The Transferor Company No. 1 and 2 as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their Audited Financial Statement for the year ended 31.03.2025.
7. The Board of Directors of the Applicant Companies i.e., Transferor Company No. 1 and 2 and Transferee Company, have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of Extracts of the Minutes of the Board of Directors Meeting of the respective companies dated 08.12.2025 have been placed on record.

8. The appointed date as specified in the Scheme is 1st April, 2025, or such other date as the Hon'ble National Company Law Tribunal may direct.

9. RATIONALE OF THE SCHEME

i. The Transferor Companies and the Transferee Company are closely held Group Private Limited Companies. The proposed amalgamation of the Transferor Companies with the Transferee Company would result in business synergy, consolidation of these Group Companies and pooling of their resources into a single entity.

ii. All the Transferor Companies and the Transferee Company are engaged in similar business activities of real estate i.e. sale/purchase of immovable properties and providing ancillary services in relation thereto.

iii. The Proposed scheme will result in formation of a larger Company enabling further growth and development of the businesses of the said Company. The scheme will enable the undertakings and business of the concerned companies to obtain greater facilities which is possessed and enjoyed by one large Company compared to some small companies for raising capital, securing and conducting trade and business on favourable terms and other related benefits.

iv. The proposed Scheme would enable sustainable long term growth, profitability, cost reduction and efficiencies and continuous customer service through focused management attention as different set of skills and resources would be available to meet competitive, regulatory · environment and customer service requirements.

v. With the enhanced capabilities and resources at its disposal, the Transferee Company will have greater flexibility to markets and meet customer needs and will be able to compete more effectively. Thus further strengthening its market position in domestic and international markets.

vi. The amalgamation will enable the Companies to pool in their financial, managerial, technical and other resources and use the financial, managerial technical and marketing and distribution expertise of each other.

vii. The scheme will lead to reduction of multiple companies by the consolidation of operations of Transferor Companies and the Transferee Companies by way of amalgamation will lead to the reduction in administrative costs and duplication of processes, resulting in internal economies and optimized profitability.

viii. The amalgamation will reduce the expenses of the merged entities including reduction of external costs (auditor fees, legal & tax

advice, compliance, IT costs, bank account costs, consulting fees, insurances, guarantees, financing & others) as well as internal costs.

ix. The scheme will have beneficial results for the said companies, their shareholders, their creditors, customers, employees and all concerned.

The Scheme of Amalgamation is proposed for the aforesaid reasons. The Board of Directors and Management of the Transferor Companies and the Transferee Company are of the opinion that the proposed Scheme is in the best interest of these Companies, their Shareholders and other stakeholders.

10. The applicant companies have annexed the certificate issued by the respective statutory auditors confirming that the accounting treatment in the Scheme is in compliance with the accounting standards prescribed by the Central Government under Section 133 of the Companies Act, 2013 by the respective companies.

11. With respect to Transferor Company No. 1, the captioned application discloses that:

a) The Company has 3 (Three) Equity Shareholders as on 30.11.2025. Certificate from Chartered Accountants certifying the list of equity shareholders is annexed with the application.

The respective consent by way of affidavit by them is annexed with the application.

b) The Company has nil Secured Creditors as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditors as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meeting as consent from all the shareholders are placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

12. With respect to Transferor Company No. 2, the captioned application discloses that:

a) It has 4 (Four) Equity Shareholders as on 30.11.2025. Certificate from Chartered Accountants certifying the list of equity shareholders is annexed with the application. The respective consent by way of affidavit by them is annexed with the application.

b) The Company has nil Secured Creditor as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

c) The Company has a sole Unsecured Creditor as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed. The respective consent by way of affidavit by it is also annexed with the application.

d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meetings as consent of all shareholders are placed on record. Since there are no Secured Creditors, therefore the necessity of convening and holding a meeting does not arise. In relation to the Unsecured Creditor, it seeks dispensing with convening/holding the meetings as consent from the sole Unsecured Creditor is placed on record.

13. Regarding the Transferee Company, the applicants have averred that:

a) The Company has 2 (Two) Shareholders as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed with the application. The respective consent by way of affidavit is also annexed with the application.

b) The Company has nil Secured Creditors as on 30.11.2025. Certificate by Chartered Accountants certifying the same is annexed with the application.

c) The Company has nil Unsecured Creditors as on 30.11.2025. Certificate from Chartered Accountants certifying the same is annexed.

d) In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meetings as consent of both the shareholders are placed on record. Since there are no Secured or Unsecured Creditors, therefore the necessity of convening and holding a meeting does not arise.

14. The applicant companies have annexed an affidavit affirming that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under any other law is pending against any of the Applicant Companies. Further, no material legal proceeding is pending against the Applicant Companies and there is no other Sectoral Regulator or Regulatory Authority which may have significant bearing on the operations of the Applicant Companies. None of the Applicant Companies is regulated or governed by the Securities and Exchange Board of India (SEBI), the Competition Commission of India (CCI), the Reserve Bank of India (RBI), or any other Sectoral Regulator or Regulatory Authority. Hence, notice of the Scheme of Amalgamation

is not required to be served on the SEBI, the CCI, the RBI, or any other Sectoral Regulator or Regulatory Authority.

15. In the wake of the averments made in the application and the documents filed therewith, the following directions are issued qua convening/holding or dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors.

A. In relation to the Transferor Company No. 1/Applicant Company No. 1:

a) With respect to Equity Shareholders: In view of consent affidavits, from all the Equity Shareholders, convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

B. In relation to the Transferor Company No. 2/Applicant Company No. 2:

a) With respect to Equity Shareholders: In view of consent affidavits, from all the Equity Shareholders,

convening/holding the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity of convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: In view of consent affidavit, from the sole unsecured creditor, convening/ holding the meeting of unsecured creditor is dispensed with.

C. In relation to the Transferee Company/Applicant Company No. 3:

a) With respect to Equity Shareholders: In view of consent affidavits, from both the Equity Shareholders, convening/holding of the meeting of shareholders is dispensed with.

b) With respect to Secured Creditors: Since there are no Secured Creditors, therefore the necessity convening/holding any such meeting does not arise.

c) With respect to Unsecured Creditors: Since there are no Unsecured Creditors, therefore the necessity convening/holding any such meeting does not arise.

16. The Application i.e., **C.A. (CAA) No. 97 of 2025 stands allowed** on the aforesaid terms and accordingly disposed of.

Sd/-	**Sd/-**
(ATUL CHATURVEDI)	**(MANNI SANKARIAH SHANMUGA SUNDARAM)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**